

Polavarapu Durga vs The State Of Andhra Pradesh on 5 June, 2026

APHC010285522026

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3520]

FRIDAY, THE FIFTH DAY OF JUNE
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE A. HARI HARANADHA SARMA

CRIMINAL PETITION Nos.4592 and 4600 of 2026

CRIMINAL PETITION NO: 4592/2026:

Between:

1. POLAVARAPU DURGA, W/O NOOKARAJU, AGED ABOUT 60 YEARS,
OCC HOMEMAKER, R/O D. NO. 12-287, ALLURI SEETHARAMARAJU
COLONY, TOORANGI, KAKINADA DISTRICT, ANDHRA PRADESH-
533005.

...PETITIONER/ACCUSED

AND

1. THE STATE OF ANDHRA PRADESH, REP. BY ITS PUBLIC
PROSECUTOR, HIGH COURT OF ANDHRA PRADESH AT
AMARAVATI, 522237. THROUGH SHO, KOTANANDURU POLICE
STATION, KAKINADA DISTRICT.

...RESPONDENT/COMPLAINANT

Petition under Section 437/438/439/482 of Cr.P.C and 528 of BNSS
praying that in the circumstances stated in the Memorandum of Grounds of
Criminal Petition, the High Court pleased to grant anticipatory bail to the
petitioner / Accused No. 6 in the event of her arrest in Crime No. 47 of 2026
on the file of Kotananduru Police Station, Kakinada District, Dt: 09.03.2026,
pending investigation and trial, and pas

Counsel for the Petitioner/accused:

1. P NANILU NAIDU

Counsel for the Respondent/complainant:

1. PUBLIC PROSECUTOR

CRIMINAL PETITION NO: 4600/2026:

Between:

1. VADISALA MAHALAKSHMI ALIAS KANAKA MAHALAKSHMI,, C/O
SIVA SHANKARAYYA POODI, AGED ABOUT 38 YEARS,OCC
GOVERNMENT EMPLOYEE, R/O D. NO. 12-71,ALLURI
SEETHARAMARAJU COLONY, YANAM ROAD,
TOORANGIKAKINADA DISTRICT, ANDHRA PRADESH-533005.
2. VADESELA PUSHPA PENKY ALIAS PUSHPA LATHA, D/O VADISELA
APPARAO, AGED ABOUT 37 YEARS,OCC GOVERNMENT
EMPLOYEE, R/O D. NO. 5-133,KOTAVURADA ROAD, PEDDA
BODEPALLI, ANAKAPALLI DISTRICT,ANDHRA PRADESH-531116.

...PETITIONER/ACCUSED(S)

AND

1. THE STATE OF ANDHRA PRADESH, REP. BY ITS PUBLIC
PROSECUTOR,HIGH COURT OF ANDHRA PARDESH AT
AMARAVATI,522237.THROUGH SHO, KOTANANDURU POLICE
STATION, KAKINADA DISTRICT.

...RESPONDENT/COMPLAINANT

Petition under Section 437/438/439/482 of Cr.P.C and 528 of BNSS
praying that in the circumstances stated in the Memorandum of Grounds of
Criminal Petition, the High Court pleased to grant anticipatory bail to the
petitioners / Accused Nos. 3 and 4 in the event of their arrest in Crime No. 47
of 2026 on the file of Kotananduru Police Station, Kakinada District, Dt
09.03.2026, pending investigation and trial, and pass

Counsel for the Petitioner/accused(S):

1. P NANILU NAIDU

Counsel for the Respondent/complainant:

1. PUBLIC PROSECUTOR

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THE HONOURABLE SRI JUSTICE A. HARI HARANADHA SARMA
CRIMINAL PETITION Nos. 4592 and 4600 of 2026

COMMON ORDER:

The CrI.P.No.4592 of 2026 has been filed by the petitioner/Accused No.6 and the CrI.P.No.4600 of 2026 has been filed by the petitioners/Accused Nos.3 and 4, under Section 482 of the Bharatiya

Nagarik Suraksha Sanhita, 2023, for grant of pre-arrest Bail in Crime No. 47 of 2026 on the file of Kotananduru Police Station, Kakinada District, dated 09.03.2026 registered against the petitioners for the offences punishable under Sections 108 read with 3(5) of the Bharatiya Nyaya Sanhitha, 2023 (for short "BNS").

2. Heard Sri P.Nanilu Naidu, learned counsel for the petitioners and Sri K.Sandeep, learned Assistant Public Prosecutor representing the respondent/State.

3. Since the subject matter in these petitions is one and the same, at the request of the learned counsel on both sides, these matters are being heard together.

4. The case of the prosecution in brief is that one Nelli Bhagyalakshmi, (deceased No.1) was given in marriage to A1 in the case and she died by committing suicide within four (4) years of marriage along with her minor son due to harassment made by her matrimonial home and the petitioners herein along with the other accused are responsible for abetting her suicide.

5. Learned counsel for the petitioners would submit that the application seeking for grant of pre-arrest bail moved by the petitioners/A3 and A4, before the learned XII Additional District Judge, Pithapuram, in Crl.M.P.No.45 of 2026 was dismissed on 18.05.2026 on the ground of pendency of investigation. The application seeking for grant of pre-arrest bail moved by the petitioner/A6 in Crl.M.P.No.40 of 2026 before the learned XII Additional District Judge, Pithapuram, was dismissed on 24.04.2026 without assigning any specific reason. Learned counsel would further submit that the petitioners are living separately and they are distant relatives. They have nothing to do with the matrimonial affairs of the deceased. A1 has been already released on bail and the investigation in this case completed. Answering the same, the learned Assistant Public Prosecutor would submit that the charge sheet is not yet been filed and the arrest of the present accused is still pending.

6. A3 and A6 are said to have been residing at Kakinada and A4 is said to have been residing at Anakapalli, the deceased appears to have been residing at Narsipatnam.

7. Upon considering the stage of investigation that so far, nine (9) witnesses were examined including the other material witnesses, the prayer for grant of pre-arrest bail to the petitioners/A3, A4 and A6 who are said to be the distant relatives and women is found to be convincing. Accordingly, the Criminal Petitions are allowed subject to the following conditions:

1) The Petitioners/A3, A4 and A6 shall be released on bail in the event of their arrest in respect of Crime No. 47 of 2026 on the file of Kotananduru Police Station, Kakinada District, dated 09.03.2026 registered for the offences punishable under Sections 108 read with 3(5) of the Bharatiya Nyaya Sanhitha, 2023, on the condition of Petitioners/A3, A4 and A6 executing bail bonds for Rs.10,000/- each with two sureties each for a like sum to the satisfaction of the S.H.O., Kotananduru Police Station, Kakinada District.

2) However, for the purpose of expediting the investigation process, Petitioners/A3, A4 and A6 are at liberty to appear before the concerned Court within three (3) weeks and furnish the above stated bail bonds to the satisfaction of the concerned Magistrate, on which they shall be released on bail.

3) The Petitioners/A3, A4 and A6 and their sureties shall furnish their permanent residential address details and identity particulars to the concerned police within fifteen (15) days after their release and keep the Police informed about the change in address, if any, time to time.

4) The Petitioners/A3, A4 and A6 shall co-operate with the investigation agency, by furnishing necessary and legally permissible information and they shall not interfere with the investigation process like contacting or influencing the witnesses etc.

5) The Petitioners/A3, A4 and A6 shall not leave India, without permission of the concerned Court.

As a sequel, miscellaneous petitions pending, if any, shall stand closed.

_____ A. HARI HARANADHA SARMA, J Date: 05.06.2026
UPS/NSM THE HONOURABLE SRI JUSTICE A. HARI HARANADHA SARMA CRIMINAL
PETITION Nos. 4592 and 4600 of 2026 Date: 05.06.2026 UPS/NSM